Tentative Rulings
July 21, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (https://www.sb-court.org/divisions/civil/civil-tentative-rulings) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

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11. *Calvary SPV I LLC v. Smith,* Case No. CIVSB2437709
Defendant's Motion to Set Aside Judgment
7/21/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Case Summary

This is a collections case. Plaintiff alleges Defendant maintained a credit card account. However, Plaintiff stopped paying on the account on September 6, 2023, leaving an open balance that is the subject of this suit. On December 23, 2024, Plaintiff filed suit for breach of contract.

Relevant here, on January 27, 2025, Plaintiff filed a proof of service (POS) stating that Defendant was personally served at her home address. The POS indicates personal service on January 26, 2025.

Following service, Plaintiff took Defendant's default, and a default judgment was entered on June 18, 2025. Now, over a year after that default judgment, Defendant filed this instant motion seeking to set aside the judgment.

Analysis

Defendant brings this motion titled "motion to set aside judgment" pursuant to Code of Civil Procedure section 473(b), seeking relief judgment and leave to file a responsive pleading. While Defendant admits to having been properly served in the lawsuit, she asserts that she erroneously believed she had until January of 2026 to answer. Defendant asserts hearsay that some unnamed source in the clerk's office told her she had until "January 23, 2026." (Smith Decl., ¶3.) On that basis, she alleges she failed to act to timely respond to the Complaint. It is unclear why she would have believed she had nearly a year after personal service to respond.

Problematically, Section 473(b) allows relief when a "party's legal representative" engages in "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).) Here, there is no attorney at issue and, therefore, this is not the correct basis for relief.

It appears the more correct code would have been Section 473.5. To set aside a judgment pursuant to Code of Civil Procedure section 473.5(a), the motion for relief must be served and filed within a reasonable time, but in no event may exceed the earlier of: (1) two years after entry of a default judgment; or (2) 180 days after service of written notice that default or default judgment entered. Importantly, Civil Code section 1788.61 provides additional time when the case is brought by a debt purchaser, which Plaintiff is here: That Section requires the motion to be brought the earlier of either (1) six years after the entry of default or (2) 180 days after the first actual notice of the action.

Here, the POS shows actual notice on January 26, 2025. Thus, the 180-day timeline would have run on July 25, 2025 – over a year ago. Thus, the motion is <u>untimely</u>.

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13. *Angelus Metal Finishing & Polishing Co. v. Duoecon Inc., et al,* Case No. CIVSB2438110
Plaintiff Angelus Metal's Motion for Summary Judgment
7/21/26, 9:00 a.m., Dept. S-17

Tentative Rulings

<u>*As to Plaintiff's Request for Judicial Notice:*</u> The Court would **GRANT** notice of the Stipulation for Entry of Judgment in LLTSB2400047 per Evidence Code section452(d).

<u>*As to the Motion:*</u> The Court would **GRANT**[1] this unopposed motion for summary judgment against Defendant Monese and defaulted Defendant DuoEcon for a monetary judgment of $97,219.98.

Plaintiff to submit a judgment in accordance with the findings herein within the next ten court days.

Case Summary

This litigation concerns recovery of owed rent. Plaintiff alleges that on August 8, 2022, the parties entered into a lease for commercial property. Plaintiff alleges that, by April 1, 2024, Defendants failed to pay rent, and Plaintiff initiated an unlawful detainer action (LLTSB2400047). That agreement had Defendants agree to give up possession; allowed Plaintiff to retain the security deposit; and alleged Plaintiff to pursue owed rent and damages through separate litigation. As such, on December 30, 2024, Plaintiff initiated this lawsuit for breach of contract.

Plaintiff now moves for summary judgment. Defendant DuoEcon is in default and thus this motion constitutes a "prove up" for default purposes. Defendant Monese has answered the Complaint but failed to oppose this instant motion for summary judgment.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-

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[1] Materials Considered: Complaint, Lease (Exh. A to Complaint); Answer; MSJ; Separate Statement of Undisputed Facts; Request for Judicial Notice; Arnold Declaration; Deemed Admitted FRAs (Exhs. D & F); Stipulated Judgment (Exh. G); 3-Day Notice to Pay or Quit (Exh. H); and Undisputed Material Facts: 1-2, 6-19.

1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*) The court's sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Analysis

The elements for a breach of contract are (1) the existence of a contract, (2) the plaintiff's performance or excuse for performance, (3) the defendant's breach, and (4) resulting damages. (*Wall Street Network Ltd. v. N.Y. Times Co*. (2008) 164 Cal.App.4th 1171, 1178.) A guarantor promises to answer for the debt, default, or miscarriage of another. (Civil Code §2787.) The guarantor's obligation rests on the contract of guaranty, which is separate and independent from the principal debtor's obligation. (*Neiderer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1505.) The element for breach of a guaranty are the same as for breach of contract, in other words: (1) the existence of a guaranty contract; (2) the plaintiff performed under the underlying contract; (3) the debtor defaulted on the contract; (4) the guarantor failed to perform; and (5) resulting damages. (*Gray1 CPB, LLC v. Kolokotronis* (2011) 202 Cal.App.4th 480, 486; see also *Torrey Pines Bank v. Superior* Court (1989) 216 Cal.App.3d 813, 819.)

Existence of Contracts. Plaintiff Angelus and Defendant DuoEcon entered into a Standard Industrial/Commercial Single-Tenant Lease-Gross (Lease) on August 8, 2022. Monese personally guaranteed the Lease and all payments of rents and other sums under the Lease. (UF, 6-7; also Lease [Exh. A to Complaint].)

Plaintiff Angelus Metal's Performance. The lease required Plaintiff to provide the subject property to Defendant DuoEcon. (Lease [§1].) Although there is no clear evidence on performance, Plaintiff notes that it obtained a stipulated judgment to regain possession of the subject property. (UF, 1; Exh. G.) If it had to regain possession, then it implicitly gave possession to DuoEcon, which means it performed.

Defendants' Breach. Defendant DuoEcon initially failed to pay the February and March 2024 rent. It paid that rent in May of 2024, but it did not remit the late fees. It then failed to make all rent payments between April 2024 and August 2024. (UF, 8-15; Arnold Decl., ¶¶7-8.) Thus, a 3-day notice to pay or quit was issued. Defendant DuoEcon vacated the premises on October 2, 2024. (UF,16-17; Arnold Decl., ¶¶9-10.)

As vacated in October 2, 2024, the Lease's provision for holdover damages was triggered, which provides that "Lessor's damages during any holdover period shall be computed at the amount of the Rent . . . due during the last full month before the expiration or termination of this Lease . . . , but with the Base Rent being 150% of the Base Rent payable during such last full month." (UF, 18; Lease [§26].)

Because Defendant Monese was part of the unlawful detainer litigation and as a part of the settlement in that litigation, Defendant Monese was aware of the breach by Defendant DuoEcon and the claim on her guarantee, which she agreed per the settlement could be sought in a separate litigation. (UF, 1-2; Exh. G.)

Plaintiff's Damages. Plaintiff is owed $97,219.98, which is based on the following:

- Unpaid Rent between April 2024 and August 2024 (5 months) at $14,280 per month: $71,400.00
- Late Fees between February 2024 and August 2024 (7 months) at $1,428 (10% of base rent of $14,280) per month: $9,996.00
- Holdover rent for September 2024, at 1.5 times the base rent of $14,740: $22,110.
- Repair Damages for hazardous material removal ($8,640) and general repairs and painting of the Subject Property, which was beyond the ordinary wear and tear ($2,073.98): $10,713.98.
- Less the retained security deposit: $17,000.

(UF, 19; Arnold Decl., ¶¶6, 11.)

Based on the above facts and evidence, Plaintiff sufficiently establishes a *prima facie* case of breach of contract against Defendant Duo with it owing $97,219.98. Also, the same facts and evidence supports Defendant Monese guaranteed the rental payments under the Lease, Plaintiff Angelus performed, Monese breached her obligation when she did not pay the monies owed under the Lease by Duo, and Plaintiff Angelus' resulting damages are $97,219.98.

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14. *Bernal, et al, v. Express Messenger Systems, Inc., et al,* Case No. CIVSB2319614
Motion for Final Approval of Class Action Settlement
7/21/26, 1:30 p.m., S-17

The Court would **GRANT** contingent on attorneys' fees being adjusted to 1/3rd the gross rather than 35%. Movant will provide an updated proposed order indicating attorneys' fees at no more than $1,500,000.

Here, this proposed settlement constitutes an effort to globally settle six matters from several jurisdictions: (1) the instant matter, *Bernal, et al, v. Express Messenger Systems, Inc., et al,* Case No. CIVSB2319614, filed on August 15, 2023; (2) *Martin v. OnTrac Logistics, Inc.,* Case No. 23STCV07710, filed on April 7, 2023; (3) *McNorton v. OnTrac Logistics, Inc.*, Case No. CGC23607925, filed on July 25, 2023; (4) *Estrada v. OnTrac Logistics, Inc.*, Case No. CIVSB2400407, filed on January 17, 2024; (5) *Earnest v. OnTrac Logistics, Inc.*, Case No. STK-VC-

UOE-2027-0000460, filed on January 12, 2024; and (6) *Hernandez, et al, v. OnTrac Logistics, Inc.,* Case No. 24STCV20860, filed on August 16, 2024.

As for the instant matter, it was filed as a wage-and-hour putative class action before this Court on August 15, 2023, with Plaintiffs Bernal and Noel listed as representative Plaintiffs. A First Amended Complaint was filed on October 19, 2023. However, in furtherance of the proposed global settlement, the parties stipulated to a Second Amended Complaint (SAC), which was filed on November 19, 2025.

The operative SAC added Plaintiffs Martin, McNorton, Earnest, Estrada, Hernandez, and Quintero, and it expanded the scope of the allegations. The SAC alleges violations related to (1) minimum, overtime and double-time wages; (2) reporting time; (3) split-shift premiums; (4) vacation pay; (5) meal periods; (6) rest breaks; (7) accurate wage statements; (8) reimbursements; (9) payment of wages due; (10) final pay; (11) the production of employment records; (12) wage deductions; (13) unlawful agreements; as well as (14) violation of the unfair competition law (UCL); and (15) civil penalties pursuant to PAGA. Importantly, the UCL and PAGA claims are underpinned by the alleged wage-and-hour violations.

During the litigation, Plaintiffs sought and received extensive discovery. They also received substantial payroll and time records, as well as handbook and policy documents. Thereafter, on March 25, 2025, the parties engaged in a full-day, arms-length mediation with Kevin Barnes an experienced neutral. Following the mediation, the parties came to an agreement in principal. That settlement was memorialized in long form by November of 2025. Notice of the settlement was given to the LWDA on December 10, 2025.

The parties successfully moved for Preliminary Approval of the Settlement before this Court on February 20, 2026. As preliminary matter, this Court found the total settlement amount of $4,500,000.00 to be fair, reasonable, and adequate given the strength of the Plaintiff's case and the risks involved in litigation. Adequate discovery and investigation had occurred, and there was no evidence of fraud or collusion.

There are 31,162 class members and 20,098 PAGA aggrieved employees. (Polites Decl., ¶¶5-6 & 17.) Notices were mailed on or about April 15, 2026. (Polites Decl., ¶7.) There were 4,578 notices returned; however, 3,567 were re-mailed after skip-tracing efforts. (*Id.*, ¶¶8-9.) Thus, only 1,011 packets are considered undeliverable. (*Id.*, ¶10.) As of the date of this motion, there was only *one* request for exclusion; *no* objections, and only *one* workweek dispute which was resolved. (*Id.*, ¶¶11-13.) This Motion seeks final approval of the proposed settlement.

Statement of the Law

Settlement of a class action requires court approval. (Rules of Court, rule 3.769.) The moving party must demonstrate that the settlement is "fair, adequate and reasonable." (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 126.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors may include “the strength of the plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintain class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.” (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors “is not exhaustive and should be tailored to each case.” (*Ibid*.) The court may “engage in a balancing and weighing of factors depending on the circumstances of each case.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245 overruled on other grounds.)

“Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement.” (*Wershba*, *supra*, 91 Cal.App.4th at p. 245, quoting *Dunk*, *supra*, 48 Cal.App.4th at p. 1801.) “The court must therefore scrutinize the proposed settlement agreement to the extent necessary to ‘reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.’” (*Ibid*., quoting *Officers for Justice v. Civil Service Com’n* (9th Cir. 1982) 688 F.2d 615, 625.) The settlement is entitled to “a presumption of fairness . . . where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 128, quoting *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802.)

Summary of the Proposed Class Settlement

The proposed final settlement terms are largely in line with those approved preliminarily: Defendants will pay a gross, non-reversionary settlement amount of $4,500,000.00, from which will be deducted (1) $1,500,000.00 for Class Counsel’s attorneys’ fees (1/3rd[2] of gross); (2) costs of $30,916.43; (3) Plaintiffs’ enhancement fees of $75,000.00 total (or $10,000 each for Plaintiffs Bernal, Noel, Martin, McNorton, Estrada, and Earnest; and $7,500 each for Plaintiffs Hernandez and Quintero); (4) claims administration fees of $89,650.00; and (5) PAGA penalties of $450,000.00 (of which $337,500, or 75%, will go to the LWDA and $112,500, or 25%, will go to the aggrieved employees).

This will leave a wage-and-hour only net settlement amount of a non-reversionary $2,354,433.57. This amount would be split by the class of 31,162 employees in proportionate shares determined by number of workweeks within the Settlement Class Period. The average per class member would be $75.55.

[2] The movant sought $1,575,000, or 35% of the gross settlement. The Court would approve at the stated 1/3rd gross amount.

Since there are 20,098 aggrieved employees for PAGA purposes, the average PAGA payout is $5.60. (See also Polites Decl., ¶18.)

Tentative

The Court finds no evidence of fraud or collusion. Class Counsel are able, experienced, and well-qualified to represent the class. The representative is also well qualified to represent. The settlement was reached through an arms-length negotiation. The Court incorporates the reasons for the preliminary approval, issued on February 20, 2026, into its ruling by this reference and would:

1. Certify the Class for settlement.
2. Approve the settlement as fair and reasonable, finding that class members were given notice, advised of their rights and to object or exclude themselves.
3. Appoint Phillip Bernal, Truhill Noel, Khyell Martin, Damien McNorton, Gilbert Estrada, Wadie Earnest, Carmen Hernandez and Wendy Quintero as Class Representatives and approve their service award of $10,000 each for Plaintiffs Bernal, Noel, Martin, McNorton, Estrada, and Earnest and $7,500 each for Plaintiffs Hernandez and Quintero (totaling $75,000);
4. Appoint the variously named Plaintiffs' counsel[3] as Class Counsel for settlement purposes.
5. Approve administrative expenses as stated to ILYM Group, Inc. at $89,650.00.
6. Approve the attorneys' fees as stated at $1,500,000.00, with costs of $30,916.43, for litigation of this action. When viewed in the light of rates appropriate to the region, the lodestar analysis generally supports attorneys' fees in line with apportionment. (See, e.g., Hosseini Decl., ¶14 & Exhs. A-B; Markham Decl., ¶12 & Exh. 1; Kazandjian Decl., ¶¶17-19 & Exhs. 2-3; Haines Decl., ¶9.)
7. Direct the clerk to enter the Court's order as final judgment.
8. Reserve continuing jurisdiction for the purposes of implementing, enforcing, or administering the Settlement or enforcing the terms of the Judgment.

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[3] See signed Order